

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Yu	Team: Squad #16	CCRB Case #: 201603271	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 04/18/2016 1:10 AM	Location of Incident: [REDACTED]	Precinct: 52	18 Mo. SOL 10/18/2017	EO SOL 10/18/2017	
Date/Time CV Reported Mon, 04/18/2016 3:05 AM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Mon, 04/18/2016 3:05 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Francis Zito	00022	942746	052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Joseph Pinero	2196	942912	052 PCT
2. POM Michael Pisano	02715	957041	052 PCT
3. POM Smit Feliz	00684	948957	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Francis Zito	Discourtesy: Police Officer Francis Zito acted discourteously toward § 87(2)(b) [REDACTED]	[REDACTED]
B.POM Francis Zito	Discourtesy: Police Officer Francis Zito spoke discourteously to § 87(2)(b) [REDACTED]	[REDACTED]
C.POM Francis Zito	Discourtesy: Police Officer Francis Zito spoke discourteously to § 87(2)(b) [REDACTED]	[REDACTED]

Case Summary

On April 18, 2016, § 87(2)(b) filed this complaint in person at the 52nd Precinct stationhouse. The complaint was received by the CCRB on the same day. On April 18, 2016, at approximately 1:10 a.m., § 87(2)(b) was inside § 87(2)(b) located at § 87(2)(b) in the Bronx, with her son § 87(2)(b) who was § 87(2)(b) at the time of incident, when she was engaged in an argument with an unknown female. § 87(2)(b) exited the hospital and continued to argue with this female. At some point, § 87(2)(b) other son, § 87(2)(b) who was § 87(2)(b) at the time of incident, arrived at the location. PO Francis Zito and PO Michael Pisano subsequently approached and spoke with § 87(2)(b). While § 87(2)(b) spoke with the officers, PO Zito slapped her hand downwards and stated, “Put your fucking hand down” (**Allegation A and Allegation B**). Moreover, § 87(2)(b) alleged that PO Zito used various discourtesies when speaking to her and § 87(2)(b) (**Allegation C**). § 87(2)(b) walked back into the hospital and called the 52nd Precinct stationhouse and spoke with PO Bernard, and told him that she was going to the stationhouse to file a complaint.

§ 87(2)(b) was ultimately issued three summonses for § 87(2)(b) by PO Zito and PO Pisano (Board Review 11). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

This case was originally assigned to Inv. Daniel Smith; this case was reassigned to Inv. Patrick Yu on April 26, 2016 upon Inv. Smith’s departure from the agency.

This case contains video evidence, SnagIt copies of which have been placed below (Board Review 14). Please note that the original videos can be found at Board Review 12 and the transcription can be found at Board Review 13.



2016-06-24_12-22-03.mp4

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation during her in-person CCRB interview (Board Review 01).
- A Notice of Claim query was sent via email on June 24, 2016. To date, the results are pending (Board Review 10).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed one prior CCRB complaint, § 87(2)(b)

- This is the first CCRB complaint § 87(2)(b) has been involved in (Board Review 06).
- PO Zito has been a member of service for nine years and has had three allegations pleaded against him in two CCRB complaints; none of the prior allegations have been substantiated § 87(2)(g)

Potential Issues

- After the § 87(2)(b) in-person interview, she agreed to contact the undersigned to schedule an interview for § 87(2)(b) and § 87(2)(b). Between April 28, 2016, and May 20, 2016, § 87(2)(b) was called seven times and voicemail messages were left. Between May 2, 2016, and May 19, 2016, three letters were sent to § 87(2)(b) and § 87(2)(b). To date, neither § 87(2)(b) nor § 87(2)(b) has contacted the CCRB to provide a statement.
- The undersigned was informed by § 87(2)(b) that the hospital staff could only be interviewed with signed HIPAA release forms. However, because § 87(2)(b) and § 87(2)(b) did not respond to contact attempts, the HIPAA forms could not be obtained. Thus, the investigation was unable to obtain witness statements from the hospital staff.
- The video footage captured the incident, but it did not show any police misconduct.

Findings and Recommendations

Allegations not pleaded:

Discourtesy-

During her in person-interview, § 87(2)(b) alleged that PO Pisano and PO Feliz used discourtesies while speaking to her in the hospital (Board Review 01). However, § 87(2)(b) could not recall any of the specific discourtesies the officers used and neither § 87(2)(b) nor § 87(2)(b) provided any testimony to further support this. § 87(2)(g)

Allegation A -Discourtesy: Police Officer Francis Zito acted discourteously to § 87(2)(b)

Allegation B -Discourtesy: Police Officer Francis Zito spoke discourteously toward § 87(2)(b)

Allegation C-Discourtesy: Police Officer Francis Zito spoke discourteously to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) stated that PO Zito and PO Pisano approached her outside of the hospital during a dispute between herself and an unknown female (Board Review 01). She acknowledged moving her hands in front of her chest while she was speaking with PO Zito. She alleged that at some point while she was speaking to him, PO Zito slapped her hand down and told her, “Put your fucking hand down.”

After the brief interaction with PO Zito and PO Pisano, § 87(2)(b) and § 87(2)(b) began walking back towards the hospital. § 87(2)(b) heard PO Zito ask, “Did you see this asshole?” which she implied to be a reference to § 87(2)(b). PO Zito also stated, “See this shit,” and “Yea he talking shit but his is walking away; he doesn’t have the balls to say it to my face.”

As noted above, neither § 87(2)(b) nor § 87(2)(b) provided a statement to the CCRB.

Both PO Zito and PO Pisano stated that § 87(2)(b) was irate screaming, cursing, and was moving her hands in front of her as she stood close to PO Zito (Board Review 02 and 04). PO Zito stated that in response, he placed his hand out in front of him, made a downward gesture, and verbally told her to put her hands down (Board Review 02). PO Zito denied slapping § 87(2)(b) hand or making any physical contact with her. Moreover, he denied using any discourteous language when speaking to her or § 87(2)(b).

Sgt. Joseph Pinero was not present when the alleged misconduct occurred. Sgt. Pinero responded at some point after the officers interacted with § 87(2)(b). He assisted the officers into the hospital so that they could issue § 87(2)(b) the summonses (Board Review 03).

§ 87(2)(b) security occurrence report § 87(2)(g) was engaged in a verbal argument with another female inside and outside of the hospital and that she was issued summonses. The report did not make any indication of any officers making physical contact or cursing at § 87(2)(b) or § 87(2)(b) (Privileged Documents).

Video footage obtained from § 87(2)(b) contained only video and no audio. Moreover, the video footage did not depict any misconduct consistent with what § 87(2)(b) described (Board Review 14). However, there are lapses in certain parts of the video, § 87(2)(g)

§ 87(2)(g)

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date